AN ACT RESPECTING ACCESS TO DOCUMENTS HELD BY PUBLIC BODIES AND THE PROTECTION OF PERSONAL INFORMATION

Articles 53, 54, 56, 57 et 59

Article 53. Personal information — Personal information is confidential, except in the following cases:

1. the person to whom the information relates consents to its disclosure; in the case of a minor, consent may also be given by the person having parental authority;

2. where it relates to information obtained by a public body in the performance of an adjudicative function; the information remains confidential, however, if the body obtained it when holding a sitting *in camera* or if the information is contemplated by an order not to disclose, publish or distribute.

1982, c. 30, s. 53; 1985, c. 30, s. 3; 1989, c. 54, s. 150; 1990, c. 57, s. 11; 2006, c. 22, s. 29.

Identifying information.

Article 54. In any document, information concerning a natural person which allows the person to be identified is personal information.

1982, c. 30, s. 54; 2006, c. 22, s. 110.

Article 56. The name of a natural person is not personal information, except where it appears in conjunction with other information concerning him, or where the mere mention of his name would disclose personal information concerning him.

1982, c. 30, s. 56; 2006, c. 22, s. 110.

Public information.

Article 57. The following personal information is public information:

1. the name, title, duties, classification, salary, address and telephone number at work of a member, the board of directors or the management

personnel of a public body and those of the deputy minister, the assistant deputy ministers and the management personnel of a government department;

2. the name, title, duties, address and telephone number at work and classification, including the salary scale attached to the classification, of a member of the personnel of a public body;

3. information concerning a person as a party to a service contract entered into with a public body, and the terms and conditions of the contract;

4. the name and address of a person deriving an economic benefit granted by a public body by virtue of a discretionary power, and any information on the nature of that benefit;

5. the name and address of the establishment of the holder of a permit issued by a public body and which is required by law to be held for the carrying on of an activity, the practice of a profession or the operation of a business.

Exception.

However, the personal information contemplated in the first paragraph is not public information where its disclosure would be likely to hinder or impede the work of a body responsible under the law for the prevention, detection or repression of crime. Similarly, the personal information contemplated in subparagraphs 3 and 4 of the first paragraph is not public information to the extent that its release would reveal other information whose release must or may be refused under Division II of Chapter II.

Disclosure of salary.

Moreover, in no case may the personal information contemplated in subparagraph 2 of the first paragraph result in the disclosure of the salary of a member of the personnel of a public body.

1982, c. 30, s. 57; 1985, c. 30, s. 4; 1990, c. 57, s. 12; 1999, c. 40, s. 3; 2006, c. 22, s. 31.

Release.

Article 59. A public body shall not release personal information without the consent of the person concerned.

Conditions.

Notwithstanding the foregoing, a public body may release nominative information without the consent of the person concerned in the following cases and strictly on the following conditions:

1. to the attorney of that body if the information is necessary to prosecute an offence against an Act administered by that body or to the Attorney General, if the information is necessary to prosecute an offence against an Act applicable in Québec;

2) to the attorney of that body, or to the Attorney General where he is acting as the attorney of that body, if the information is necessary for purposes of judicial proceedings other than those contemplated in paragraph 1;

3) to a body responsible by law for the prevention, detection or repression of crime or statutory offences, if the information is necessary to prosecute an offence against an Act applicable in Québec;

4) to a person to whom the information must be disclosed because of the urgency of a situation that threatens the life, health or safety of the person concerned;

5) to a person authorized by the Commission d'accès à l'information, in accordance with section 125, to use the information for study, research or statistics purposes;

6) *(paragraph repealed);*

7) *(paragraph repealed);*

8) to a person, body or agency, in accordance with sections 61, 66, 67, 67.1, 67.2, 68 and 68.1;

9) to a person involved in an incident that has been the subject of a report by a police force or by a person or body acting in conformity with an Act that requires a report of the same nature; in the case of information on the identity of any other person involved in the incident, except a witness, an informer or a person whose health or safety could be endangered by the release of such information.

1982, c. 30, s. 59; 1983, c. 38, s. 55; 1984, c. 27, s. 1; 1985, c. 30, s. 5; 1987, c. 68, s. 5; 1990, c. 57, s. 13; 2006, c. 22, s. 32.